

A
MEASURE

PASSED BY

The National Assembly of the Church of England

To promote the more efficient and economical administration of the resources of the Church of England by uniting the Corporation of the Governors of the Bounty of Queen Anne for the augmentation of the maintenance of the poor clergy, founded by charter under the Great Seal in the year 1704, and the Ecclesiastical Commissioners for England originally established in the year 1836 by the statute 6 and 7 William the Fourth, chapter 77. [2nd April 1947.]

1.—(1) For the purpose of uniting Queen Anne's Bounty with the Ecclesiastical Commissioners there shall be established, by the name of the Church Commissioners for England, a body corporate having perpetual succession and a common seal and power to acquire and hold land without licence in mortmain. Establishment of the Church Commissioners.

(2) The said body (hereafter in this Measure referred to as "the Commissioners") shall be constituted in accordance with the provisions of the First Schedule to this Measure, and may for all purposes be referred to as the "Church Commissioners."

2. On the appointed day Queen Anne's Bounty and the Ecclesiastical Commissioners (hereafter in this Measure referred to as "the constituent authorities") shall be dissolved and— Transfer of functions and property.

- (a) all functions, rights and privileges of either of them shall be transferred to, and become functions, rights and privileges of, the Commissioners;
- (b) all property vested in either of them shall be transferred to, and shall by virtue of this section and without any conveyance, assignment, transfer or other assurance vest in, the Commissioners: and
- (c) all property held in trust for either of them shall be held in trust for the Commissioners:

Provided that a vesting of property by virtue of paragraph (b) of this section shall not affect any previously existing trust or mortgage or other charge affecting the property, or any previously existing lease or tenancy thereof.

Method of
business.

3. The business of the Commissioners, except the exercise of powers which, under this or any other Measure or any enactment, are required to be exercised at a general meeting of the Commissioners, shall be transacted in accordance with the provisions of this Measure by a Board of Governors (hereafter in this Measure referred to as "the Board"), the Church Estates Commissioners appointed under the Ecclesiastical Commissioners Act, 1850, and an Estates and Finance Committee.

General
meetings of
the Commis-
sioners.

4.—(1) The Archbishop of Canterbury shall be the chairman of the Commissioners and, if at any general meeting thereof he is not present, such member as the members present may elect shall act as chairman.

(2) The Commissioners shall in every financial year hold an annual general meeting for the purpose of—

- (a) considering, and, if thought fit, passing resolutions with respect to, the annual report and accounts of the Commissioners and any other matters which may be brought before the meeting by the Board, or which the chairman, upon a request submitted to the secretary by any member, may have authorised the secretary to include in the notices of business to be considered ;
- (b) appointing, in a year when any such appointment falls to be made, persons to serve as members of the Board ;
- (c) appointing persons to serve as members of the Estates and Finance Committee ; and
- (d) considering and, if thought fit, adopting the recommendations of the Board as to the allocation of such moneys as the Board may report to be available.

(3) The annual general meeting shall be called by the chairman so soon as conveniently may be after the audit of the Commissioners' accounts for the preceding financial year has been completed,

(4) The chairman may call such other general meetings of the Commissioners as he deems necessary and he shall, so soon as reasonably practicable, call a meeting if ten or more members give to the secretary notice in writing that they desire a meeting to be called to consider matters specified in the notice.

(5) Not less than twenty-eight days before any general meeting, notice of the day, hour and place appointed therefor, and not less than ten days before any general meeting notice of the business to be considered thereat, shall be sent by post to every member.

Constitution
and functions
of Board of
Governors.

5.—(1) The Board shall be constituted in accordance with the provisions of the Second Schedule to this Measure.

(2) The Archbishop of Canterbury shall be the chairman of the Board and, if at any meeting thereof he is not present, such member as the members present may elect shall act as chairman.

(3) Subject to the provisions of this Measure, all the functions and business of the Commissioners shall be exercised and transacted by the Board.

(4) The Board shall have power—

- (a) to refer for consideration and report any matter within their jurisdiction to the Estates and Finance Committee, or to any other committee consisting of Commissioners which the Board may appoint for the purpose ;
- (b) to authorise the Estates and Finance Committee, or any other such committee as aforesaid, to do and complete any matter on behalf of the Board ;
- (c) to make general rules for the direction and guidance of the Estates and Finance Committee or any committee appointed by the Board, as to the matters and acts to be considered and done by that committee, and as to the general principles upon which that committee shall act in carrying out such functions as may from time to time be delegated to them by the Board.

(5) The like notice of the business to be considered at a meeting of the Board as is given to members of the Board shall be given also to diocesan bishops who are not members thereof.

6.—(1) The three Church Estates Commissioners appointed from time to time under section one of the Ecclesiastical Commissioners Act, 1850, shall, together with the persons appointed under the next succeeding subsection constitute a committee, to be known as the Estates and Finance Committee. They shall, subject to the provisions of subsection (3) of this section, be joint Treasurers of the Commissioners and shall be ex officio members of any committee appointed by the Board.

Church
Estates
Commis-
sioners and
Estates and
Finance
Committee.
13 & 14 Vict.
c. 94.

(2) The Commissioners shall in every year at their annual general meeting appoint not less than two or more than four of their number to be additional members of the Estates and Finance Committee, one half at least of the persons so appointed being laymen who are Commissioners otherwise than in right of office.

(3) The Estates and Finance Committee shall have the same functions in relation to the property and business of the Commissioners as the Estates Committee constituted under section seven of the said Act of 1850 had in relation to the property and business of the Ecclesiastical Commissioners immediately before the appointed day, and, accordingly, sections eight and

nine of that Act and section two of the Ecclesiastical Commissioners Act, 1866, as set out with consequential adaptations in the Third Schedule to this Measure, shall continue to have effect :

Provided that during a vacancy in the office of one of the Church Estates Commissioners or for any other cause which he may think sufficient, the Archbishop of Canterbury may from time to time appoint one of the additional lay members of the Estates and Finance Committee to act as an additional joint Treasurer during such period as the said Archbishop shall determine, and while such appointment is in force the person so appointed shall be entitled to exercise the powers of a Church Estates Commissioner for any purpose for which the presence or concurrence of two or more Church Estates Commissioners is required by the said Acts.

(4) In addition to any other powers conferred on them by this Measure, but, subject to any general rules made by the Board, the Estates and Finance Committee shall have full and exclusive power to exercise and discharge in the name of the Commissioners all functions of the Commissioners in matters relating to—

- (a) the making, realisation and change of investments ;
and
- (b) the appointment, terms of service, dismissal and direction of the Commissioners' officers, solicitors and agents and control over the expenses of administration :
provided that this paragraph shall not apply in relation to the secretary of the Commissioners.

It shall also be the duty of the Committee to act on behalf of and in the name of the Commissioners in any matter which in their opinion is urgent, but they shall report any such action to the Board at the next meeting thereof.

(5) The receipt of any two of the joint Treasurers, or the receipt of any one of them countersigned by the accountant of the Commissioners, or by some other officer authorised in that behalf by the Estates and Finance Committee, shall be a good and sufficient discharge for any money due and payable to the Commissioners.

(6) The provisions of any enactment or Measure relating to the payment of salaries and pensions to Church Estates Commissioners shall continue to have effect with the substitution of references to the Board and to the general fund of the Commissioners for references to the Ecclesiastical Commissioners and to their common fund.

7.—(1) The provisions of the Fourth Schedule to this Measure shall have effect with regard to the meetings and procedure of the Commissioners and of the Board and of any committee constituted by or under this Measure. Procedure.

(2) Subject as aforesaid and to any other provisions of this Measure—

- (a) the Commissioners may regulate their own procedure and may from time to time at any general meeting make, vary and revoke Standing Orders for the purpose ;
- (b) the Board may from time to time make, vary and revoke Standing Orders for regulating the procedure of the Board or of any Committee of the Board and subject to any such Standing Orders the Board and any such committee may regulate their own procedure ;
- (c) the Estates and Finance Committee may regulate their own procedure and may from time to time make, vary and revoke Standing Orders for the purpose.

8.—(1) The Commissioners shall from time to time at any general meeting appoint a secretary upon such terms as they may think fit. Secretary, agents and other officers.

(2) The Estates and Finance Committee shall from time to time in exercise of their powers under section six of this Measure appoint such other officers and such solicitors and agents as they deem necessary for the proper discharge of the functions of the Commissioners.

(3) The proviso to section seven of the Ecclesiastical Commissioners Act, 1836 (which authorises the Treasury to regulate the amount of the salaries of the officers employed by the Ecclesiastical Commissioners) shall not apply in relation to the officers employed by the Commissioners. 6 & 7 Will. 4. c. 77.

9.—(1) The common seal of the Commissioners shall be judicially noticed and shall be authenticated by the signature of the secretary, or of some other officer of the Commissioners authorised by the Board to act in that behalf. Seal of the Commissioners.

(2) Every document purporting to be sealed with the said seal and to be authenticated by the signature of the secretary, or of a person so authorised to act in that behalf, shall be received in evidence and be deemed to be such an instrument without further proof, unless evidence to the contrary is given.

10.—(1) The financial year of the Commissioners shall commence on the first day of April. Finance.

(2) The accounts of the constituent authorities current on the first day of October preceding the appointed day shall not be required to be closed on the days on which, but for this Measure, they would have been closed, but shall be kept open

(or, if necessary, reopened) and continued until the day preceding the appointed day and at the end of that preceding day shall be closed and made up.

(3) The said accounts shall be audited by the persons and in the manner by whom and in which annual accounts of the authority in question were required to be audited, but shall be laid by the Board before the Commissioners at their first annual general meeting (which shall be held as soon as conveniently may be after the audit has been completed) and section twelve of this Measure shall, with any necessary adaptations, apply in relation to those accounts (including the auditors' reports thereon).

(4) As from the appointed day, the Commissioners shall keep a general fund to which shall be transferred on the appointed day any balances on income account from the common fund of the Ecclesiastical Commissioners and from the corporate fund of Queen Anne's Bounty.

(5) Any trust or other fund previously maintained by either of the constituent authorities as a separate fund shall be continued and maintained as a separate fund by the Commissioners: provided that funds maintained by the two constituent authorities for the same objects or purposes may be amalgamated.

(6) Subject to the last preceding subsection, the Commissioners shall carry all income received in respect of property and funds held by them into their general fund, and shall discharge thereout all trusts and commitments to which that income or any part thereof is subject and all expenses and obligations falling upon the Commissioners in the due discharge of their functions, and the balance from time to time thereafter remaining in the said fund shall be available for any purpose for which, but for this Measure, any surplus of the common fund of the Ecclesiastical Commissioners or of the corporate fund of Queen Anne's Bounty would have been available.

Accounts
and audit.

11.—(1) The Commissioners shall cause such accounts to be kept as may be required for the due performance and discharge of their functions.

(2) The accounts of the Commissioners shall in every year be audited in such manner and by such person as the Treasury may direct, and the auditor's report thereon shall for the purposes of the next succeeding section be deemed to form part of the accounts.

Annual
report and
accounts to be
laid before
Parliament
and Church
Assembly.

12.—(1) So soon as may be after the close of every financial year the Board shall prepare a report of the work and proceedings of the Commissioners during that year, and shall present the report and accounts for that year to the Commissioners at their annual general meeting.

(2) Within thirty days after such meeting the secretary shall transmit the report and accounts, together with a copy of any resolution passed by the Commissioners with reference thereto, to the Secretary of State for the Home Department, who shall lay copies of the report, accounts and resolution, if any, before both Houses of Parliament.

(3) Within the same period the secretary shall also send copies of the said documents to the secretary of the Church Assembly, who shall lay them before the Assembly.

13.—(1) No proceedings or cause of action pending or existing immediately before the appointed day by or against either of the constituent authorities shall abate, be discontinued or in any way prejudicially affected by this Measure, but any such proceedings may be continued and enforced by or against the Commissioners. Pending and existing proceedings and contracts, etc.

(2) All contracts, bonds, agreements and other instruments subsisting immediately before the appointed day and affecting either of the constituent authorities shall be of as full force and effect against, or in favour of, the Commissioners and may be enforced as fully and effectually as if the Commissioners had been a party thereto instead of the constituent authority.

14.—(1) Where any stock is standing in the books of a company in the name of either of the constituent authorities, a request by the secretary of the Commissioners and production of a copy of this Measure printed by or for the King's Printer of Acts of Parliament shall be a sufficient authority to the company to transfer the stock into the name of and to pay dividends on the stock to, the Commissioners. Transfer of stock.

(2) In this section the expression—

“company” includes the Bank of England and any company or person keeping books in which any stock is registered or inscribed; and

“stock” includes any share, annuity or other security.

15.—(1) On the appointed day every officer of either of the constituent authorities shall be transferred to, and become an officer of the Commissioners. Transfer of Officers.

(2) The Commissioners may assign to any such officer (hereafter in this Measure referred to as a “transferred officer”) such duties as they think fit; but he shall not be in any worse position as respects tenure of office, conditions of service or salary than he would have been if this Measure had not been passed.

(3) If within two years after the appointed day a transferred officer expresses to the Estates and Finance Committee his desire to retire on special terms and the Committee are satisfied that it is equitable to allow him so to do, they shall, upon his resignation, grant him compensation of not less value than the superannuation benefits which he would have received had he

resigned on grounds of infirmity, and, if he so elects, shall on such terms as they deem equitable allow him to surrender a part of such compensation for the benefit of his spouse or dependants.

Transitional
arrangements
and inaugural
meeting of
Commis-
sioners.

16.—(1) The first appointed and nominated Commissioners may be appointed and nominated at any time after the passing of this Measure.

(2) The Archbishop of Canterbury, after consultation with the constituent authorities, shall—

(a) make before the appointed day such temporary appointments and arrangements as he may deem necessary to enable the functions of the Commissioners to be discharged until permanent appointments and arrangements can be made; and

(b) by notice in writing sent by post to each of them not less than twenty-eight days before the appointed day, summon the Commissioners to attend the inaugural general meeting of the Commissioners either on the appointed day or on some later day within ten days therefrom.

(3) At their inaugural general meeting the Commissioners shall—

(a) appoint a secretary;

(b) appoint members to serve on the Board and on the Estates and Finance Committee; and

(c) transact any other business of which ten days' notice has been given to members.

(4) The secretary shall summon members of the Board to attend the first meeting thereof on such day as the Chairman may direct.

(5) The Estates and Finance Committee shall, without any necessity for previous notice to members thereof, meet at the close of the inaugural general meeting of the Commissioners to make, or appoint a meeting for the purpose of making, such other appointments and such arrangements for the conduct of the Commissioners' business as they deem necessary.

(6) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-seven of the Interpretation Act, 1889.

52 & 53 Vict.
c. 63.

Provisions
as to super-
annuation.

28 & 29 Vict.
c. 68.

33 & 34 Vict.
c. 89.

1 & 2 Geo. 6.
c. 13.

17.—(1) The Estates and Finance Committee shall make rules regulating the grant of superannuation benefits to the officers of the Commissioners, and the allocation of superannuation benefits to their spouses or dependants, and the provisions of the Ecclesiastical Commissioners (Superannuation) Act, 1865, the Queen Anne's Bounty (Superannuation) Act, 1870, the Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Acts, 1914 and 1933, and the Superannuation (Various

Services) Act, 1938, shall not apply to the Commissioners or their officers:

Provided that in the case of any transferred officer—

- (a) service under either of the constituent authorities and service under the Commissioners shall be aggregated and treated as continuous service under the Commissioners ; and
- (b) the superannuation benefits to be granted to him on his retirement shall be not less than those which might have been awarded had the provisions of the said Acts applied at that date to him and to the Commissioners and the Commissioners shall have the like power to permit the allocation of such superannuation benefits to his spouse or dependants as they would have had under section one of the Superannuation (Various Services) Act, 1938.

(2) As from the appointed day the liability of either of the constituent authorities to make payments in respect of superannuation benefits to a person who had been employed by them, but had before the appointed day ceased to be so employed, or to his spouse or dependants, shall be transferred to, and become a liability of, the Commissioners and be a charge on their general fund.

18.—(1) In this Measure, unless the context otherwise requires— Interpretation.

“the appointed day” means the first day of April in such year as the Archbishop of Canterbury may appoint by a notice published in the London Gazette not later than the first day of December in the preceding year ;

“dean” includes the dean or provost of any cathedral church in England, and the deans of Westminster and Windsor ;

“functions” includes powers and duties ;

“officer” includes servant ;

“procedure” includes the fixing of a quorum ;

“property” includes a thing in action and any interest in real or personal property ;

“superannuation benefits” has the same meaning as it has in the Superannuation (Various Services) Act, 1938.

(2) References in any Act or Measure (other than this Measure) or in any other document (including any testamentary document) to either of the constituent authorities, or to the common or corporate fund of either of them, shall be construed as references to the Commissioners or, as the case may be, to their general fund.

19. This Measure may be cited as the Church Commissioners Short title. Measure, 1947.

SCHEDULE I.

Section 1 (2).

CONSTITUTION OF THE COMMISSIONERS.

1. The Commissioners shall be—

the Archbishops of Canterbury and York and the diocesan bishops of the Provinces of Canterbury and York ;
the three church estates commissioners ;
five deans appointed by the Church Assembly, three from the Province of Canterbury and two from the Province of York ;
ten other clerks in Holy Orders appointed by the Church Assembly ;
ten laymen appointed by the Church Assembly ;
four laymen nominated by His Majesty, and four persons nominated by the Archbishop of Canterbury : provided that at least two of the eight Commissioners so nominated shall be, or shall have been, of counsel to His Majesty ;
The Lord Chancellor, the Lord President of the Council, the First Lord of the Treasury, the Chancellor of the Exchequer and the Secretary of State for the Home Department ;
the Speaker of the House of Commons ;
the Lord Chief Justice, the Master of the Rolls, the Attorney-General and the Solicitor-General ;
The Lord Mayor and two aldermen of the City of London and the Lord Mayor of the City of York ; and
one representative from each of the universities of Oxford and Cambridge, being either the Vice-Chancellor or a person nominated by him to serve during his own term of office.

2. Commissioners appointed by the Church Assembly (who need not be members thereof) shall be appointed for five years in such manner as the Assembly may from time to time determine.

Commissioners nominated by the Archbishop of Canterbury shall be nominated for such number of years as he may from time to time determine.

The two aldermen of the City of London shall be appointed by the court of aldermen thereof either for one year or for such number of years not exceeding five as the court may from time to time determine.

In this paragraph the expression " year " means a period of twelve months commencing on the first day of April.

Any such Commissioner as is referred to in this paragraph shall be eligible for re-appointment or re-nomination.

3. In the event of delay in the appointment or nomination of a successor, any such Commissioner as is referred to in the last preceding paragraph shall, notwithstanding the expiration of the period for which he was appointed or nominated, continue to hold office until a successor is appointed or nominated.

4. A person shall be disqualified from being a Commissioner so long as he is a salaried official of any central or diocesan body in the Church of England.

5. If an appointed Commissioner who was qualified for appointment by virtue of being a dean, a clerk in Holy Orders, or a layman appointed

by the Church Assembly ceases to be so qualified, he shall thereby vacate his membership.

6. Every lay Commissioner not being a Commissioner in right of office shall, before otherwise acting in connection with the business of the Commissioners, declare in writing before an officer of the Commissioners that he is a member of the Church of England.

SCHEDULE II.

CONSTITUTION OF THE BOARD OF GOVERNORS.

Section 5 (1).

1. The Board shall consist of the following persons—

the Archbishops of Canterbury and York ;
the three church estates commissioners ;
twenty-two other Commissioners appointed by the Commissioners,
and

such other Commissioners, if any, as may be co-opted in accordance with the provisions of this Schedule.

2. Of the twenty-two members to be appointed by the Commissioners six shall be diocesan bishops, two shall be deans, six shall be other clerks in Holy Orders and eight shall be laymen, of whom six shall be chosen from those appointed by the Church Assembly.

3. At the inaugural general meeting of the Commissioners twenty-two members shall be appointed in the proportions laid down in the preceding paragraph and of the members so appointed one-half shall hold office for six years and the remainder for three years. Thereafter, in every third year eleven members shall be appointed at the annual general meeting of the Commissioners to fill the places of members retiring in that year.

4. The period of office of an appointed member shall run from the day following the annual general meeting at which he is appointed to the close of the day on which his successor is appointed.

A member appointed at the inaugural general meeting shall enter upon his office forthwith, but the date for his retirement shall be calculated as if he had been appointed at the first annual general meeting of the Commissioners.

5. The eleven original members to hold office for six years shall be three bishops, one dean, three other clerks, three of the laymen appointed by the Church Assembly and one of the laymen not so appointed.

6. As between members in any category, those to hold office for six years shall be those receiving most votes :

Provided that if—

(a) in any category there is no contest ; or

(b) in a category where there is a contest, a selection must be made between two or more members whose votes were equal ;

any necessary selection shall be made by lot.

For the purposes of this paragraph, lots shall be drawn by such persons and in such manner as the Chairman may direct.

7. The Board may from time to time co-opt as additional members of the Board not more than three persons being Commissioners at the date of co-optation.

Such co-optation may be for any period not extending beyond the next triennial election of members of the Board.

8. If a member of the Board who was qualified for membership by virtue of being a diocesan bishop, a dean, a clerk in Holy Orders, or a layman appointed by the Church Assembly, ceases to be so qualified, he shall thereby vacate his membership.

SCHEDULE III.

Section 6 (3).

THE ECCLESIASTICAL COMMISSIONERS ACT, 1850.

Sections 8 and 9, as adapted.

Estates and
Finance
Committee to
manage all the
estates of the
Commissioners.

8. It shall be the duty of the Estates and Finance Committee, or any three of them, of whom two or more shall be Church Estates Commissioners, to consider all matters in any way relating or incident to the sale, purchase, exchange, letting, or management, by or on behalf of the Commissioners, of any lands, tithes, or hereditaments, and to devise such measures touching the same as shall appear to such committee to be most expedient; and such committee, or any three of them, of whom two or more shall be Church Estates Commissioners, shall have full power and authority subject to such general rules as shall have been made by the Board of Governors of the Commissioners, to do and execute any act, including the affixing of the common seal to any scheme or other instrument within the power of the Commissioners, in respect of the sale, purchase, exchange, letting, or management, of any lands, tithes, or hereditaments:

Provided always, that no such act shall be done or executed by the Commissioners otherwise than by the said Estates and Finance Committee, nor by such committee unless with the concurrence of two at least of the Church Estates Commissioners.

Chairman of
Estates and
Finance
Committee.

9. At all meetings of the Estates and Finance Committee the first Church Estates Commissioner shall preside, or, if he is absent, the other Church Estates Commissioner appointed by His Majesty or the Church Estates Commissioner appointed by the archbishop, shall be chairman at alternate meetings; and in case of an equality of votes the chairman shall have a second or casting vote.

THE ECCLESIASTICAL COMMISSIONERS ACT, 1866.

Section 2, as adapted.

Application of
Ecclesiastical
Commissioners
Act, 1866, s. 2.

All acts which the Estates and Finance Committee of the Commissioners are authorised by law to do and execute or to complete may be done and executed or completed by any two members of such Committee being Church Estates Commissioners.

SCHEDULE IV.**GENERAL PROVISIONS RELATING TO THE COMMISSIONERS, THE BOARD Section 7 (1).
AND COMMITTEES.**

1. The proceedings of the Commissioners, the Board or a committee shall not be invalidated by any vacancy in the membership thereof, or by any defect in the qualification, appointment or nomination of any member.

2. When an appointed or nominated Commissioner proposes to retire, his intention so to do shall be notified by him in writing to the secretary of the Commissioners, who shall forthwith give notice to the person or body by whom such Commissioner was appointed or nominated.

3. Casual vacancies among appointed or nominated Commissioners may be filled by the person or body by whom the Commissioner vacating office was appointed or nominated. Casual vacancies among members of the Board or a committee may be filled by the Board.

4. Any person appointed or nominated to fill a casual vacancy shall hold office for the remainder of the term (if any) for which his predecessor was appointed or nominated.

5. At any meeting of the Commissioners, the Board or a committee, every question shall be decided by a majority of the votes of members present and voting on that question and in the case of equality of votes, the member presiding shall have a second or casting vote :

Provided that, if at the inaugural or any annual general meeting the Commissioners so decide, the Commissioners who are to serve as members of the Board, or of the Estates and Finance Committee, may be chosen at that meeting by ballot, or (notwithstanding anything contained in this Measure) within fourteen days after that meeting by means of voting papers issued and returned by post.

6. Minutes of the proceedings of the Commissioners or of the Board signed at the same or the next meeting by a member describing himself, or appearing to be, the person presiding at the meeting at which the minutes are signed, shall be received in evidence without further proof, and, until the contrary is proved, every meeting of the Commissioners or of the Board, in respect of the proceedings whereof minutes have been so signed shall be deemed to have been duly convened and held.

7. The provisions of this Schedule relating to Committees shall in their application to the Estates and Finance Committee have effect subject to any special provisions with respect thereto contained in this Measure.